

26STCV07921 26STCV07921

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV07921 Hearing Date: July 16, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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LUIS ANTONIO ORTIZ,

Plaintiff,

vs.

ELEVANCE HEALTH, INC., et al.

Defendants

Case No.:

26STCV07921

Hearing Date:

July 16, 2026

ORDER GRANTING MOTION TO CONTINUE TRIAL

I. BACKGROUND

Plaintiff Luis Antonio Ortiz ("Ortiz") was allegedly denied reasonable accommodations by employers Defendants Elevance Health, Inc. ("EH"), Anthem Blue Cross Life, and Health Insurance Company ("Anthem"), and Blue Cross of California ("BC"), during Ortiz's triple bypass surgery recovery period, eventually terminating Ortiz's employment for job abandonment. Plaintiff sues Defendants for twelve causes of action including disability discrimination and failure to determine reasonable accommodations.

On June 12, 2026, Defendants filed the instant motion to continue trial at least 150 days from October 19, 2026, and to continue all related dates to trail the new trial date. Plaintiff filed an opposition, and Defendants filed a reply.

II. LEGAL STANDARD

Under California Rules of Court rule 3.1332, subdivision (c), the Court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include "a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts," or the unavailability of a party, counsel, or expert due to death, illness or other excusable circumstance. The Court should consider all facts and circumstances relevant to the determination, such as proximity of the trial date, prior continuances, prejudice suffered, whether all parties have stipulated to a continuance, and whether the interests of justice are served. (Cal. Rule of Court rule 3.1332, subd. (d).)

III. DISCUSSION

Defendants request the Court continue trial at least 150 days from the current trial date to complete discovery and allow Defendants EH, The Elevance Health Companies, Inc. ("EHC") and Susan Millet-Reilly ("Millet-Reilly") to file motions for summary judgment. The Court may grant a continuance only pursuant to a showing of good cause, such as a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts. (Cal. Rules of Court rule 3.1332, subd. (c)(6).) The Court must consider all factors, including proximity of the trial date, previous continuances, length of continuance requested, availability of alternative means to address the issue, prejudice to parties and witnesses, the Court's calendar, and whether the interests of justice are best served by continuance. (Cal. Rules of Court rule 3.1332, subd. (d).)

As Defendants allege EH and EHC were unable to file and serve motions for summary judgment before the required service date, due to Ortiz's refusal to comply with discovery requirements, the Court reviews the motion within this context.¹

All motions for summary judgment must be heard at least 30 days prior to the trial date, unless a court orders otherwise. (Code of Civil Procedure § 437c, subd. (a)(3)2.) The moving papers must be served on all other parties to the action at least 81 days before the time appointed for the hearing. (§ 437c, subd. (a)(2).) Therefore, all motions for summary judgment must be served at least 111 days prior to the trial date, or by June 30, 2026.

Following a denied attempt to compel arbitration, most Defendants filed an answer to the subject complaint on September 20, 2024. The remaining Defendant, Millet-Reilly, filed an answer on March 5, 2025. Pursuant to section 2025.210, subdivision (a), Defendants could have served notice of Ortiz's deposition at any point after appearing in this action. Similarly, pursuant to section 2032.220, subdivision (b), Requests for mental examination ("IME") are not guaranteed; parties must either stipulate or seek a court order, granted only upon a showing good cause. (§ 2032.320.) IME requests may be made any time after a defendant appears. Therefore, Defendants could have sought the relevant discovery as early as September 20, 2024.

A. Ortiz's IME.

Defendants first requested Ortiz's IME on August 19, 2025, 11 months after first appearing in this action. Defendants sent a draft stipulation on September 3, 2025, of an IME agreement, to which Ortiz's counsel replied on September 17, 2025. Parties met and conferred regarding limitations for the following two months but were unable to agree. Finally, on November 18, 2025, EH filed a motion to compel Ortiz's IME. The motion was initially heard on February 11, 2026. The Court continued the hearing on the motion as the meet and confer requirement was not met:

"However, the Court finds the meet and confer requirement not met. Section 2016.040 provides that a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. As previously stated, an exchange of emails or letters does not meet the requirement." (February 11, 2026, Minute Order.)

Following the meet and confer process, parties resolved all but five issues. The Court ruled on those issues on April 16, 2026, and granted the motion. The IME was conducted on May 11, 2026. As Ortiz's IME was completed approximately 45 days prior to the motion for summary judgment service date, the Court does not find it is relevant to assessing the need for a continuance.

B. Ortiz's Deposition

On August 15, 2025, Defendants first requested Ortiz's availability for September deposition dates. Defendants later followed up, on August 27, 2025, stating "finding September dates at this point is going to be tough." (Opp., Carr Decl. ¶ 15, Ex. 12.) In the first half of September, Ortiz provided multiple October dates; (Id. at ¶ 15, Ex. 13.) Parties finally agreed to an October 17, 2025, deposition date.

The deposition commenced at 10:13 a.m. At 4:36 p.m., Ortiz requested the deposition be postponed due to pain. Parties briefly met and conferred on the record to discuss future dates but did not set a date at that time. Defendants' counsel stated, "we will meet and confer on a new date, and we will do something as soon as we can." (Id. at ¶ 19, Ex. 15.)

Defendants filed a motion to compel further testimony on December 3, 2025. On the court's ruling on the motion, the Court found Defendants again failed to properly meet and confer prior to filing this motion. (February 23, 2026, Minute Order.) However, the Court ruled on the merits and granted the motion as to all issues, except one, ordering Ortiz to appear for further deposition on numerous topics. (Ibid.)

The second session of Ortiz's deposition occurred on March 17, 2026. However, parties did not complete the deposition on that date. Defendants did not request additional deposition dates until May 29, 2026—over two months after completion of the March deposition. On June 2, 2026, Ortiz's counsel offered five June dates—three of which were on weekdays. Defendants rejected all proposed dates; there is no indication Defendants have requested or provided alternative dates.

C. Analysis

The Court first notes it will not consider discovery sought by Ortiz as a reason to continue the trial date because Ortiz is opposing this motion in full. Therefore, the Court assumes Ortiz is willing to forfeit Ortiz's right to pursue this discovery in order to avoid a trial continuance.

The Court may only continue trial upon a showing of good cause, such as an inability to obtain essential discovery despite diligent efforts. Here, the Court does not find good cause, as Defendants did not diligently pursue discovery. Defendants waited 11 months, until August 2025, to pursue any sort of discovery—at the time, this was only 8 months prior to the then trial date of April 6, 2026. Defendants presented limited availability for Ortiz's deposition and IME due to Defendants' own impacted calendar. Although the Court granted Defendants' motions to compel, for both motions, the Court noted Defendants failed to meet the meet and confer requirements, indicating a lack of diligence in pursuing discovery.

Even after the Court granted an order requiring Ortiz to appear for future depositions, Defendants failed to secure Ortiz's appearance. Parties understood, following Ortiz's March deposition, at least one other Ortiz deposition was necessary. Despite this, Defendants waited two months to request dates for Ortiz's deposition—only one month prior to the motion for summary judgment service due date. Four days later, Ortiz's counsel provided June 12, 17, and 24 as available dates. Defendants did not reply until June 12, stating June 12th was unreasonable as "ten days' notice did not provide sufficient time" to prepare for a deposition, and a lack of availability for the other dates. (Opp., Carr Decl. ¶ 27, Ex. 21.) Defendants also did not provide any specific availability, instead simply asking to Ortiz's availability.

Defendants' failure to request Ortiz's availability for two months, to agree to a deposition with 10 days-notice, to timely reply to the Ortiz's provided availability, and to seek dates prior to the motion for summary judgment service date all are indicative of Defendants' failure to diligently seek discovery in order to submit a motion for summary judgment. There is no indication discovery will not be completed prior to trial, as parties are allegedly attempting to set Ortiz's deposition for July.

Therefore, the Court does not find good cause to continue trial simply to allow Defendants the ability to file a timely motion for summary judgment. Defendants failed to diligently pursue discovery, even after obtaining a court order despite insufficient meet and confer attempts, in order to file said motion.

D. Hearing on Motion for Summary Judgment

The Court will grant a short continuance to allow the timely served motions for summary judgment to be heard at least 30 days prior to the current trial date. One motion is set for September 30, 2026—less than 30 days prior to the current October 19, 2026, date—due to the Court's own impacted calendar. Therefore, the Court grants a brief continuance to allow this motion to be heard at least 30 days prior to trial.

IV. CONCLUSION

Defendants' motion to continue trial is therefore GRANTED, in part. Trial is continued to the court's first available date at least 30 days after September 30, 2026. The final status conference is continued to a date about 10 days before the new trial date.

All dates, except for the motion for summary judgment due date, are continued to trail the new trial date.

Defendants are ordered to give notice.

DATED: July 16, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.